

GENESIS PVB, LLC v. GRAFER, et al

18CV43485

CROSS-COMPLAINANTS' MOTION FOR PREFERENCE IN TRIAL SETTING, and DEFENDANT/CROSS-COMPLAINANTS' MOTION FOR MANDATORY DISMISSAL PURSUANT TO CCP § 583.310 OF SECOND AMENDED COMPLAINT

The court summarized the torturous procedural history in this matter in the recent minute order from a vacated March 11, 2024, Settlement Conference. The court re-asserts relevant portions of the summary:

* The original Complaint was filed [Aug. 13, 2018] by Attorney Amanda Potier on behalf of Plaintiffs Genesis PVB; 3NT Management, LLC; and Craig Bordon.

* A Demurrer to the Second Amended Complaint, was partially sustained and partially overruled. Attorney Jasun Molinelli of Hanson Bridgett LLP filed an Answer, for Defendants George Grafer; Raquel Grafer; George 7820, LLC; George 7820, Inc.; Raquel 1331, LLC; and Two Grafers Management, LLC [May 23, 2019].

* A Cross complaint was filed [May 23, 2019] on behalf of George Grafer against Genesis PVB, LLC, 3NT Management, LLC; Craig Bordon and Nickitas Panayotou.

* Motion to transfer from Marin County to consolidate is granted. Court notes that the Order was filed by Mr. Molinelli, who had substituted out. [Complaint in Marin case was filed Nov. 16, 2018.]

* Attorney David Furtado had his 3rd Amended motion to withdraw as counsel granted and Attorney Michael Creamer is representing Mr. Bordon. [Sept. 15, 2023.]

* Cross-Complaint names Nickitas Panayotou, who has never appeared or been dismissed, so Court determines case is not at issue and vacates Mandatory Settlement Conference and instead puts matter back on for case management.

* The matter was set for Case Management Conference on May 8, 2024, at 1:30 p.m. in Dept. 4. All parties were directed to file what they consider to be current status of which parties remain in the action, who they are represented by, and as to what causes of action.

Defendant/Cross-complainant now brings two noticed motions to the Court.

The first is “Defendant and Cross-Complainants’ Motion for Mandatory Dismissal Pursuant to Code of Civil Procedure (CCP) § 583.310 of Plaintiff Craig Bordon’s Second Amended Complaint.” The second, filed two days later, was a “Motion for Order Granting Preference in Trial Setting or, in the Alternative, Trial Setting with Sufficient Time to Advance to Trial Prior to The September 27, 2024 Deadline.”

The moving papers did not include the required language of Local Rule 3.3.7.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285.

Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that exigent circumstances occur in both motions. (Defendant is cautioned this is a rare instance where the Court does not deny a pending motion for the failure to include the mandated language.)

DEFENDANT'S MOTION TO DISMISS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.310

Following the outbreak of COVID-19 in March 2020, the Judicial Council of California adopted an emergency rule that extended the deadline to bring a civil action to trial under section 583.310. Specifically, emergency rule 10(a), effective April 6, 2020, provides that 'Notwithstanding any other law, including ... section 583.310, for all civil actions filed on or before April 6, 2020, the time in which to bring the action to trial is extended by six months for a total time of five years and six months. (*State ex rel. Sills v. Gharib-Danesh* (2023) 88 Cal.App.5th 824, 840, quoting Cal. Rules of Court (CRC), appen. I, emergency rule 10(a), emphasis added.)

The original Complaint was filed on Aug. 13, 2018 by Plaintiffs Genesis PVB; 3NT Management, LLC; and Craig Bordon. The CCP § 583.310 deadline was Aug. 13, 2023. The Emergency Rule extended the deadline to February 13, 2024. Thus the elements of CCP § 583.310 are clearly met.

This matter must be dismissed unless a tolling or exception exists.

CCP § 583.340 provides:

In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

- (a) The jurisdiction of the court to try the action was suspended.
- (b) Prosecution or trial of the action was stayed or enjoined.
- (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.

Plaintiff argues that the legislative intent behind the enactment of CCP § 583.340 was to dispose of civil actions on their merits rather than dismissing them on procedural technicalities, citing *Perryman v. Superior Court* (2006) 141 Cal.App.4th 767, 774. *Perryman* does not provide any help to plaintiff's position; in *Perryman*, the court ruled in a criminal context that the defendants' successful motion to quash a jury venire and restart jury selection did not constitute a "mistrial" motion. Since it did not prejudice the prosecution, it did not trigger a new period for the defendants to be "brought to trial" under Penal Code §1382, subdivision (a)(2), a decision unique to the constitutional speedy trial rights.

Reported cases citing CCP § 583.340(c) from the court's independent research do not define the current matter as falling within the section's scope of "impossible, impracticable, or futile."

The rest of the plaintiff's argument criticizes previous counsel. The declaration might provide some backstory to the attorney/client relationship relevant in another context but not relevant to the matter before this Court.

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CROSS-COMPLAINANTS' MOTION FOR PREFERENCE IN TRIAL SETTING OR, IN THE ALTERNATIVE, TRIAL SETTING WITH SUFFICIENT TIME TO ADVANCE TO TRIAL PRIOR TO THE SEPTEMBER 27, 2024 DEADLINE

A complaint and a cross-complaint are for most purposes treated as independent actions. (*McLellan v. McLellan* (1972) 23 Cal.App.3rd 343, 353.) Accordingly, even a judgment dismissing the complaint does not deprive the cross-complainant of his right to a trial of the issues on his cross-complaint. (*Westamerica Bank v. MBG Industries* (2007) 158 Cal.App.4th 109; *National Electric Supply Co. v. Mount Diablo Unified School Dist.* (1960) 187 Cal.App.2nd 418, 422.)

This Court held at the March 11, 2024, Mandatory Settlement Conference that Cross-Defendant Nickitas Panayotou has never appeared or been dismissed, so the case is *not at issue* so any request for trial setting of any kind is not ripe.

The Court **GRANTS** Defendants' Motion to Dismiss pursuant to CCP § 583.310, and **DENIES**, without prejudice, the Motion for Order Granting Preference in Trial Setting.

The Clerk shall provide notice of these Rulings to the parties forthwith. Defendant/Cross-Complainant is to submit formal Orders in compliance with Rule 3.1312 in conformity with these Rulings.

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

CROSS-COMPLAINANT'S MOTION FOR LEAVE TO FILE FIFTH AMENDED CROSS-COMPLAINT

Cross-Complainant Angels Gun Club, Inc., moves for leave to file a Fifth Amended Cross-Complaint to include a new Cause of Action for Quiet Title.

The court generally affords great liberality to a party to file an amended pleading. (See *Cal. Gasoline Retailers v. Regal Petroleum Corp.* (1958) 50 Cal. 2nd 844, 851.) However, if a proposed amendment or a party suffers prejudice due to unnecessary delay in seeking the amendment, the court may refuse permission to file an amended pleading. Cross-Defendant argues that Cross-Complainant has unjustifiably delayed the request and that actual prejudice exists.

In considering the questions of unnecessary delay and prejudice to cross-defendant, the court previously was persuaded that it is necessary to include all family members on the title to the real property in the pleadings for any enforceable resolution. The court also took into account declarations, which clarified issues, even though they arguably exceeded the scope of the underlying motion.

The Court notes that the initial 2019 Cross-Complaint title the first two causes of action: "Quiet Title – Prescriptive Easement"; and "Quiet Title – Declaratory Relief." The First Amended Complaint adds a specific "Quiet Title" cause of action. This nomenclature continues in Second Amended Complaint. The appended "Quiet Title" and separate cause of action was dropped at Cross-Complainant's request to file a Third Amended Cross-Complaint, and ruled, in part:

Gun Club's request to delete the cause of action for quiet title is GRANTED. Removing this cause of action does not unduly prejudice Tryon.

Gun Club's requests to amend the cross-complaint to change Tryon's interest from an easement to a license based on the deed and to add an allegation seeking to terminate that license is GRANTED. Either party can argue whether the parties' intent was to form an easement or to grant a license. Both sides can present their arguments at any appropriate procedural forum. (Ruling, June 12, 2020.)

The Third and Fourth Amended Complaints did not include separate Quiet Title Causes of Action. However, all versions of the cross-complaint raised the same Land-Swap Agreement and equitable rights and remedies. Regardless of whether it's a separate cause of action or an equitable remedy, the court still may consider the disputed facts and render a decision on these property rights, equitable or legal.